

Notice from the National Commission for Data Protection regarding
Bill No. 8335 on security, safety, order, and video surveillance in public transport and amending the
law of February 5, 2021, on public transport.
Deliberation No. 25/AV10/2024 of May 2, 2024.

1.
In accordance with Article 57.1.e) of Regulation (EU) 2016/679 of the European Parliament and of the Council of April 27, 2016, on the protection of natural persons with regard to the processing of personal data and on the free movement of such data, and repealing Directive 95/46/EC (General Data Protection Regulation) (hereinafter referred to as the "GDPR"), to which Article 7 of the law of August 1, 2018, on the organization of the National Commission for Data Protection and the general regime on data protection refers, the National Commission for Data Protection (hereinafter referred to as the "National Commission" or the "CNPDP") "advises, in accordance with the law of the Member State, the national parliament, the government, and other institutions and bodies regarding legislative and administrative measures relating to the protection of the rights and freedoms of natural persons with regard to processing."

Furthermore, Article 36.4 of the GDPR states that "[m]ember states consult the supervisory authority in the context of the preparation of a legislative proposal to be adopted by a national parliament, or a regulatory measure based on such a legislative measure, which relates to processing."

2.
Although not directly seized by the Ministry of Mobility and Public Works, the National Commission nonetheless wishes to express its opinion on Bill No. 8335 concerning security, safety, order, and video surveillance in public transport and amending the law of February 5, 2021, on public transport (hereinafter referred to as the "bill").

3.
According to the explanatory memorandum, there has been an "increase in inappropriate behaviors and assaults in public transport, towards the driving staff, particularly bus drivers and train accompanying staff, as well as towards the equipment," while "operators lament, for some time now, that the legislative and regulatory texts and the measures currently in place are not sufficient."

The present bill therefore aims to establish "a better framework for determining rules for the use of public transport, and to enable the detection and sanctioning of offenses, particularly against behaviors that hinder the proper functioning of public transport or even compromise its safe execution."

CNPDP

Notice from the National Commission for Data Protection
regarding Bill No. 8335 on security, safety, order, and video surveillance
in public transport and amending the law of February 5, 2021, on public transport..

1/16

4.
The CNPDP wishes to emphasize from the outset that the analysis of the rules of use and behavior by users in public transport, that is to say in any bus, tram, or train executing a public transport service, and in public transport infrastructures including railway and bus stations, park-and-ride facilities (P+R), and stops served by public transport services, as well as the very principle of expanding the powers of public transport service agents does not fall within its scope of competence. However, the processing of personal data that said agents may, where applicable, implement in this context, as well as the provisions regarding the installation of surveillance cameras in public transport means and infrastructures raise questions related to the protection of personal data.

1.
Regarding the processing of personal data carried out by public transport service agents

5.
According to Article 24 of the draft law titled "Processing of Personal Data," the agents referred to in

Article 12, namely service agents and licensed service agents, may, in the performance of their duties, collect the name, surname, date of birth, and address of the person who has committed an offense liable to be punished by one of the measures or sanctions in Chapters 5 and 6 of the draft law. It should be noted in this context that the draft law indeed distinguishes between the "service agent," that is to say, any "person employed for the provision of public transport services," on the one hand, and such an agent who is "licensed" by the minister responsible for Transport (hereinafter referred to as the "minister") in accordance with Article 8 of the draft law, on the other hand. Furthermore, the public transport services refer to those provided by trains, buses, and trams as defined in Articles 2 and 4 of the law of February 5, 2021, on public transport.

a. Preliminary Remarks

6.
First of all, the CNPD wishes to emphasize that it understands that any potential processing of personal data in the context of the detection of offenses referred to in the aforementioned Article 9 of the draft law can only be carried out by service agents who are "licensed." It therefore recommends that the authors of the draft law adapt Article 24, second paragraph, accordingly.

1 According to Article 2, point 9° of the draft law.

2 See Article 1 of the draft law.

3 See definitions of "service agent" and "licensed service agent" in points 5° and 6° of Article 2 of the draft law.

4 See Article 1 of the draft law and its commentary on the articles.

CNPD

Opinion of the National Commission for Data Protection

regarding draft law No. 8335 on security, safety, order, and video surveillance

in public transport and amending the law of February 5, 2021, on public transport.

2/16

7.
Similarly, the National Commission notes that paragraph 1 of the aforementioned article 24 of the draft law refers only to the "personal data referred to in this chapter," whereas this chapter (chapter 6) concerns only video surveillance and not the processing of personal data carried out in the context of the new missions of authorized service agents.

Furthermore, the reference to the measures or sanctions of chapters 5 and 6 in the same article 24 of the draft law seems erroneous. Indeed, chapter 5 only addresses the criminal offenses and sanctions pursued and established by the Grand Ducal Police and the Customs and Excise Administration (hereinafter "ADA") and not by the aforementioned service agents, while chapter 6 contains, as mentioned above, the provisions concerning video surveillance, but does not provide for any sanctions.

8.
In light of the above, the CNPD recommends that the authors of the draft law remove the contested article and insert the provisions regarding the processing of personal data into chapter 3 of the draft law on administrative sanctions, on the one hand, and into chapter 5 concerning criminal offenses, on the other hand. Alternatively, article 24 of the draft law should be amended taking into account the previous remarks and distinguishing between the data processing carried out by authorized transport agents and that carried out by the Grand Ducal Police and the ADA.

b. Regarding the data controller

9.
The CNPD wishes to remind that in accordance with article 4(7) of the GDPR, the data controller is "the natural or legal person, public authority, service, or other body which, alone or jointly with others, determines the purposes and means of the processing; where the purposes and means of that processing are determined by Union law or the law of a Member State, the controller may be designated or the specific criteria for its designation may be provided for by Union law or by the law of a Member State."

10.

With regard more specifically to the concepts of data controller and processor, it emerges from the guidelines of the European Data Protection Board (hereinafter: "EDPB") on this subject that "[w]hen the data controller is specifically identified by law, this designation is decisive for defining who acts as the data controller. This presupposes that the legislator has designated as the data controller the entity that is truly able to exercise control."

11.

It is also worth noting that the concept of data controller, even of joint responsibility, are functional concepts in that they aim to distribute responsibilities in the processing of personal data.

5 EDPB, Guidelines 07/2020 on the concepts of data controller and processor in the GDPR, version 2.0, adopted on July 7, 2021, point 23.

CNPD

Opinion of the National Commission for Data Protection

on draft law no. 8335 concerning security, safety, order, and video surveillance

in public transport and amending the law of February 5, 2021, on public transport.

3/16

function of the actual roles played by the stakeholders. Thus, they rely on a factual analysis rather than a formal one.

12. In this case, multiple actors are involved who, if applicable, may carry out different processing of personal data:

- The authorized service agents carry out reports of violations in accordance with Article 9 of the draft law.

- A copy of these reports is sent to the minister who may impose an administrative fine based on Article 10.1 of the draft law, which provides that the Administration of Registration, Domains, and VAT is responsible for the collection of these fines. The minister may also issue decisions prohibiting access and residence in public transport means and infrastructures, which are notified to the user. In this case, information is provided to the Grand Ducal Police and the ADA.

Tax warnings may be issued by the Grand Ducal Police and the ADA in accordance with Articles 15 to 20 of the draft law.

13. Generally, the National Commission believes that it could emerge from the overall economy of the draft law that the minister, the Grand Ducal Police, and the ADA should each be considered responsible for the processing of personal data they carry out in order to fulfill the missions imposed on them by the draft law.

14. It wishes to emphasize in this context that the processing of personal data carried out, if applicable, by the Grand Ducal Police, and even by the ADA in the context of the criminal offenses they may sanction, falls within the scope of the law of August 1, 2018, on the protection of natural persons with regard to the processing of personal data in criminal matters as well as in matters of national security.

15. However, the CNPD believes that neither the text of the draft law nor the commentary on the articles clarifies who is responsible for the processing of personal data carried out by the authorized service agents when they carry out reports of violations based on Article 9 of the draft law. Is it each employer of the said agents who provide public transport services, both from the public and private sectors, or, on the contrary, the minister who would then assume general responsibility for the processing of personal data?

6 Page 3 and points 21 and 52 of the said guidelines.

7 See Article 14 of the draft law.

8 See in this context the guidelines 07/2020 regarding the concepts of data controller and processor in the GDPR, point 19: "In principle, any processing of personal data carried out by employees in the context of an organization's activities may be deemed to occur under its control."

CNPD

****Opinion of the National Commission for Data Protection****

****on draft law No. 8335 relating to security, safety, order, and video surveillance in public transport and amending the law of February 5, 2021, on public transport.****

****4/16****

****Data Processing in the Context of Offense Findings That May, Where Applicable, Be Subject to One of the Administrative Sanctions Mentioned in Article 7.3 of the Bill?****

It is therefore recommended that the authors of the bill specify in the body of the text who should be qualified as responsible for the various processing of personal data implemented.

****e. Regarding Identity Control****

16. According to Article 7.4 of the bill, authorized service agents, members of the Grand Ducal Police within the police framework, and ADA agents are permitted, in the event of findings of offenses leading to an administrative sanction, to check the identity of users and to request an identity document for this purpose. The commentary on the articles only specifies that "identity is necessary to trigger the procedures provided for in the related articles."

17. The CNPD is surprised that the legislator has chosen to extend the prerogatives of judicial police officers and agents in the context of identity checks provided for in Article 45 of the Code of Criminal Procedure to other actors, especially since these latter may, where applicable, be employees hired by private companies.

18. Furthermore, even though Article 7.4 of the bill provides that "the refusal to present an identity document is punishable by a fine of 25 to 250 euros," the CNPD questions what coercive means authorized service agents can invoke in the event of a user's refusal or inability to produce an identity document. Indeed, the detention of a person in such a situation or their transport to the police station for identity verification purposes constitutes a power granted by the Code of Criminal Procedure solely to the Grand Ducal Police.

****d. Regarding the Finding of Offenses and the Order to Leave Public Transport****

19. According to Articles 9.1 and 9.2 of the bill, the authorized service agent may record "in writing or by electronic means" the offenses that are subject to administrative sanctions of which they are a direct witness, on the one hand, and that this "written or electronic record is proof of the facts therein noted, until proven otherwise," on the other hand.

9 For example, companies such as Luxtram S.A. or private companies operating public transport bus lines in Luxembourg such as Voyages Emile Weber sàrl, S.L.A. S.A., or Demy Schandeler S.a r.l.

10 See Article 45.2 of the Code of Criminal Procedure: "If the interested party refuses or is unable to prove their identity, they may be detained on the spot or taken to the police station for identity verification purposes."

****CNPD****

****Opinion of the National Commission for Data Protection****

****Regarding Bill No. 8335 on Security, Safety, Order, and Video Surveillance in Public Transport and Amending the Law of February 5, 2021, on Public Transport.****

5/16

The CNPD believes that it is not appropriate to differentiate between a "written" report and an "electronic" report, as an electronic report is also manifested in written form. It assumes that the authors of the draft law considered differentiating between a manually written report and an electronic report, and it recommends that they adapt the text of Article 9 of the draft law accordingly.

20. Furthermore, in accordance with Articles 9.1 and 9.4 of the draft law, a copy of the report is sent to the minister, while the original is handed over to the offender. Based on the aforementioned provisions, the CNPD assumes that no copy of the said report will be kept by the authorized service agent. Otherwise, and without further justification in the commentary on the articles, the National Commission cannot express an opinion on the necessity of retaining a copy of the reports by the agents concerned.

Indeed, in accordance with Article 5.1.e) of the GDPR, personal data must be "adequate, relevant, and limited to what is necessary in relation to the purposes for which they are processed (data minimization)."

21. It also notes that Article 9.5 of the draft law provides that the person who committed an offense has "access to the file and is able to present their written observations within two weeks from the delivery of the aforementioned report." Nevertheless, it does not emerge from either the text of the draft law or its commentary to whom the right of access is to be exercised and to whom the observations are to be addressed: to the authorized service agent who drafted the report or directly to the minister?

22. Regarding the injunctions to leave public transport in accordance with Article 13 of the draft law, service agents and authorized service agents may instruct "users who refuse to comply with a reminder to leave the means of public transport or to move away from the premises," while only members of the Grand Ducal Police and the ADA are authorized to enforce this by force. This prohibition ends after two hours, with the commentary on the articles specifying that the "2009 law [...] still provided for the restoration of relations upon an injunction to leave the premises or information regarding an expulsion. Considering in practice that this did not occur as there was no added value, the authors no longer provide such a provision in the new text."

23. The National Commission nonetheless questions how compliance with this injunction to leave public transport for two hours, or how a potential violation of said injunction, could be proven without written evidence. It wonders whether the agent in question would not note the identity of the user and the hours of the prohibition, thereby processing personal data. In this case, it believes that clarifications should be inserted into the text of the draft law.

CNPD

Opinion of the National Commission for Data Protection

Regarding draft law No. 8335 on security, safety, order, and video surveillance in public transport and amending the law of February 5, 2021, on public transport.

6/16

II.

Regarding Video Surveillance

24.

Article 21.1 of the draft law provides for the establishment of video surveillance "by installing cameras on board and outside public transport vehicles, as well as in public transport infrastructures [...]." As mentioned in point 4 of this opinion, "public transport vehicles" refer to buses, trams, and trains providing public transport services, while "public transport infrastructures" include railway and bus stations, park-and-ride facilities (P+R), and stops served by public transport services. According to the commentary on the articles, this article aims to create "a legal basis for the installation of surveillance cameras in and on public transport vehicles and in public transport infrastructures and defines their purposes."

25.

The capture and recording by such surveillance cameras of images of identifiable persons or vehicles whose license plates are clearly visible in the images constitute processing of personal data within the meaning of the GDPR. In general, the CNPD welcomes the fact that the draft law intends to provide a legal basis for the processing of data carried out in the context of the installation of the aforementioned cameras. It notes that these cameras pursue various purposes listed in Article 21.1 of the draft law, such as "securing access to public transport," "ensuring the safety of persons and protecting property," or "allowing competent authorities and operators to take appropriate and necessary measures in the event of accidents and incidents." Their installation in public transport vehicles and infrastructures could therefore correspond to a public interest mission in accordance with Article 6.1.e) of the GDPR. Nevertheless, various conditions must be met in this context, which the CNPD wishes to remind in its preliminary remarks before analyzing in more detail the substance of the provisions in this matter contained in the draft law.

a. Preliminary Remarks

26.

The CNPD first considers that Article 6.1.e) of the GDPR, read in conjunction with Article 6.3 of the GDPR, provides in this context a particular constraint related to the lawfulness of data processing necessary for the performance of a public interest mission or related to the exercise of public authority vested in the data controller. In this case, the basis, that is to say, the public interest mission in question, and notably the purposes of the data processing must arise either from European Union law or from the law of the Member State to which the data controller is subject, and this basis must meet "a public interest objective and is proportionate to the legitimate objective pursued."

See Article 1 and Article 2 point 9° of the draft law. See also the definitions of "railway station," "bus station," and "stop" provided in Article 2, points 1°, 2°, and 4° of the draft law.

CNPD

Opinion of the National Commission for Data Protection

Regarding draft law No. 8335 on security, safety, order, and video surveillance in public transport and amending the law of February 5, 2021, on public transport.

7/16

27.

In a recent ruling, the Court of Justice stated, for example, that the "determination of the purposes and means of processing and, where appropriate, the designation of the responsible party by national law can be not only explicit but also implicit. In the latter case, it is nevertheless required that this determination arises with sufficient certainty from the role, mission, and responsibilities assigned to the person or entity concerned."

28.

In domestic law, it should be noted that Article 31 of the revised Constitution, applicable since July 1, 2023, provides that "[e]very person has the right to informational self-determination and to the protection of personal data concerning them. These data may only be processed for purposes and under conditions determined by law."

29.

Therefore, taking into account that the protection of personal data is a matter reserved for law by the Constitution, the essence of the normative framework must result from the law, including the purposes, conditions, and modalities under which less essential elements may be regulated by regulations and orders issued by the Grand Duke. Indeed, according to the jurisprudence of the Constitutional Court, Article 45.2 of the Constitution requires that in these matters, "the setting of the objectives of the implementing measures must be clearly stated, as well as the conditions to which they are, if applicable, subject. The guidance and framework of the executive power must, in any case, be consistent, precise, and readable, the essence of the relevant provisions being required to be included in the law."

30.

Next, it must be taken into account that fundamental rights are not absolute prerogatives since the possibility of interference or limitation is provided for both by Article 8.2 of the European Convention on Human Rights and by Article 52.1 of the Charter of Fundamental Rights of the European Union, as well as by Article 37 of the revised Luxembourg Constitution, which states that "[a]ny limitation on the exercise of public freedoms must be provided for by law and respect their essential content. In compliance with the principle of proportionality, limitations may only be imposed if they are necessary in a democratic society and effectively meet objectives of general interest or the need to protect the rights and freedoms of others."

31.

The National Commission therefore considers that if the data processing carried out by entities in the context of fulfilling their public interest missions constitutes an interference in the private life of citizens, such processing must be specifically framed by a law in the formal sense. Indeed, an interference or limitation in the exercise of public freedoms can only be justified if it is provided for by a law accessible to the persons concerned and predictable in its repercussions, that is to say, formulated with a clarity

that allows individuals to understand its implications.

Opinion of the National Commission for Data Protection regarding draft law No. 8335 on security, safety, order, and video surveillance in public transport and amending the law of February 5, 2021, on public transport.

8/16

sufficient precision, respects the essential content of the right to data protection, and effectively responds to general interest objectives or the need to protect the rights and freedoms of others. Ultimately, the interference must be necessary in a democratic society, subject to the principle of proportionality.¹⁵

32. The act of recording images by surveillance cameras in public transport means and infrastructures, potentially capturing individuals within their field of vision who have not expressed their consent, constitutes such significant interference in the exercise of the right to privacy and the protection of personal data and must therefore comply with the aforementioned conditions.

b. Regarding the data controller

33. The CNPD first allows itself to refer to points 9 to 11 of this opinion on the notion of data controller, or even joint responsibility. It wishes to add that this responsibility "can be defined by law or arise from an analysis of the factual elements or circumstances of the case. [...] However, more frequently, rather than directly designating the data controller or defining the criteria applicable to its designation, legislation will assign a mission or impose on someone the obligation to collect and process certain data. In these cases, the purpose of the processing is often determined by law. The data controller will normally be the one designated by law for the achievement of this purpose, this public service mission."¹⁶

34. Determining who decides to install surveillance cameras in which means and on which public transport infrastructure is therefore fundamental in order to know who must respect the rights granted to the data subjects, as well as the obligations imposed by the GDPR.

35. Nevertheless, the National Commission considers that neither the text of the draft law nor the commentary on the articles, nor even indirectly the factual elements or circumstances in question, indicate who should be considered the data controller for the personal data collected through the installation of surveillance cameras. In other words, based on the provisions of the draft law, it is not possible to determine which specific entity is responsible for achieving the purposes set out in Article 24.1 of the draft law. Would it be the various operators providing public transport services¹⁷, allowing, where applicable, to

15 For a more detailed analysis of these conditions, see deliberation No. 2/2021 of February 4, 2021, of the National Commission for Data Protection, doc. parl. No. 7425/09, point 1.1.b). See also the judgment of the CJEU of March 7, 2024, Endemol Shine Finland Oy, C-740/22, EU:C:2024:216, point 52.

16 EDPB, Guidelines 07/2020 on the concepts of data controller and processor in the GDPR, version 2.0, adopted on July 7, 2021, points 20 and 24.

17 Such as the National Railway Company of Luxembourg (C.F.L.), the intermunicipal tramway union in the canton of Esch (TICE), Luxtram S.A., or other private companies operating under the General Regime of Road Transport (RGTR) public transport bus lines in Luxembourg, such as Voyages Emile Weber sàrl, S.L.A. S.A. or Demy Schandeler S.à r.l.

CNPD

Opinion of the National Commission for Data Protection
on draft law No. 8335 concerning security, safety, order, and video surveillance
in public transport and amending the law of February 5, 2021, on public transport.

9/16

of private companies to install cameras in public spaces, or, conversely, of the Minister, or even of the Public Transport Administration? A joint responsibility between the aforementioned operators and the Minister seems, if applicable, conceivable.

36. In the event that the Minister is to be considered responsible for the processing, the CNPD wonders whether the latter unilaterally and on his own initiative decides where and how many cameras

are to be installed, or if the various operators have the possibility to request an installation authorization for cameras from the Minister. If such a system is provided for, it is important to define its modalities in the text of the draft law. By way of comparison, in Belgium, the amended law of March 21, 2007 regulating the use of surveillance cameras provides in its Article 5 that the data controller who wishes to install fixed surveillance cameras in a public place (such as, for example, at a bus or tram stop) can only be a public authority, on the one hand, and that this authority must have received a positive opinion from the municipal council after prior consultation with the head of the police zone, on the other hand.

37. The National Commission therefore considers it essential to specify in the body of the text of the draft law who is to be qualified as responsible, or even as joint responsible parties for the processing carried out in the context of surveillance cameras in and on public transport means, as well as in the infrastructures concerned.

****e. Regarding the pursued purposes****

38. In terms of compliance with the principles relating to the processing of personal data as provided by the GDPR, the CNPD reminds that personal data must be "collected for specified, explicit, and legitimate purposes, and not further processed in a manner incompatible with those purposes [...] (purpose limitation)" and that they must be "adequate, relevant, and limited to what is necessary in relation to the purposes for which they are processed (data minimization)."

39. In this case, Article 21.1 of the draft law enumerates seven different purposes pursued by the establishment of cameras on board and outside public transport means and infrastructures. Nevertheless, concerning more specifically purpose No. 3, which consists of "allowing the prosecution of criminal offenses," the CNPD questions what the interaction is between the draft law under review and the amended law of July 18, 2018, on the Grand Ducal Police. Indeed, as the cameras in the various public transport infrastructures, including those aimed at stops served by public transport services, just like the cameras placed outside public transport means, are intended to film the public road, Article 43bis, paragraph 1 of the aforementioned law may be applicable.

****18 See Article 5.1.b) and e) of the GDPR.****

****19 See in this context points 41 to 43 of this opinion.****

****CNPD****

****Opinion of the National Commission for Data Protection****

****Regarding draft law No. 8335 on security, safety, order, and video surveillance in public transport and amending the law of February 5, 2021, on public transport.****

****10/16****

from this provision, the "Police may, with the authorization of the minister and if other means implemented to prevent the commission of criminal offenses have proven ineffective, place under video surveillance for the purposes of preventing, investigating, and establishing criminal offenses the places accessible to the public that present a particular risk of the commission of criminal offenses."

40. The CNPD therefore believes that the establishment of surveillance cameras based on the bill under review outside of public transport means and in public transport infrastructures, which are by their nature accessible to the public, in order to pursue criminal offenses risks encroaching upon the prerogatives of the Grand-Ducal Police in accordance with the aforementioned article of the amended law of July 18, 2018, on the Grand-Ducal Police. In other words, the pursuit of this objective by a data controller based on Article 21 of the bill cannot be considered "legitimate" within the meaning of Article 5.1.b) of the GDPR, as the realization of this objective is a mission reserved by law for the Grand-Ducal Police. It must therefore be avoided that the bill under review would allow circumventing the conditions and modalities provided for in Article 43bis, paragraph 1 of the amended law of July 18, 2018, on the Grand-Ducal Police in order to place under video surveillance for the purposes of preventing, investigating, and establishing criminal offenses the places accessible to the public.

41. Finally, taking into account that Article 21 of the bill would allow the installation of cameras "outside" public transport means, the CNPD assumes that mobile cameras installed on buses, trains,

or trams, i.e., "dashcams," are being referred to.

42. In France, the law of May 25, 2021, for comprehensive security preserving freedoms provides for the experimental installation of such front-facing cameras mounted on rolling stock operated by public railway transport operators. Nevertheless, the purposes that such cameras can pursue are much more limited. Indeed, Article 61 of the aforementioned law states that the "processing provided for in this article has the exclusive purpose of ensuring the prevention and analysis of railway accidents as well as the training of driving personnel and their hierarchy."

43. In light of the principle of data minimization and limitation of purposes and due to the lack of explanations regarding the purposes pursued in the commentary on the articles, the CNPD therefore questions whether such dashcams are truly necessary to achieve all the purposes listed in Article 21.1 of the bill, or whether, on the contrary, a distinction must be made between the purposes pursued by the cameras installed in public transport means, those outside said means (i.e., dashcams), and those set up in public transport infrastructures.

CNPD

Opinion of the National Commission for Data Protection

Regarding Bill No. 8335 on security, safety, order, and video surveillance in public transport and amending the law of February 5, 2021, on public transport.

11/16

d. Regarding the fields of vision and the number of cameras

44.

Without prejudice to its previous comments on the notion of data controller, or even on the purposes pursued by the processing operations carried out by the cameras that may be installed in and outside public transport means and infrastructures in accordance with Article 27.1 of the draft law, the CNPD wonders whether the data controller(s) have only the option to install such cameras or whether, on the contrary, the future law would impose an obligation on them to set them up.

45.

Similarly, it is not clear from the text of the draft law, nor from the commentary on the articles, whether cameras will potentially be installed at all stations, parking lots, and stops served by public transport services, or only at strategic points that meet certain conditions (for example, locations particularly exposed to risks of accidents, damage, assaults, thefts, or threats to the safety of persons or property). The CNPD wishes to emphasize in this context that the installation of cameras throughout the public transport network could lead to nearly the entirety of public space in Luxembourg being under video surveillance, which risks being in contradiction with the principles of proportionality and necessity, combined with the principle of data minimization. It therefore considers it important to establish in the body of the draft law objective criteria governing the implementation of surveillance cameras in order to avoid any disproportionate collection of personal data, while respecting the principles of predictability and quality of law as provided by European Union law.

46.

Furthermore, similar to what is provided in Article 43b/s, paragraph (5), subparagraph 2, of the amended law of July 18, 2018, on the Grand Ducal Police, the CNPD recommends that the authors of the draft law include in the text of the draft law a provision stating that "[t]he use of facial recognition techniques is excluded."

47.

Finally, the CNPD wishes to emphasize that employees of the various public transport operators generally have the right not to be subjected to permanent and continuous surveillance, especially through cameras installed inside public transport means. To avoid such surveillance, the data controller must limit the field of vision of the cameras to only the area necessary to achieve the intended purposes.

20 See points 33 to 37 of this opinion regarding the issue concerning the definition of the data controller and points 38 to 43 on the purposes pursued.

21 See in this context Article 43bis, second paragraph of the amended law of July 18, 2018, on the

Grand Ducal Police, which enumerates locations presenting a particular risk of the commission of criminal offenses.

22 See CNPD guidelines on video surveillance, updated on 04/05/2024, page 10.

CNPD

Opinion of the National Commission for Data Protection

on draft law No. 8335 concerning security, safety, order, and video surveillance in public transport and amending the law of February 5, 2021, on public transport.

12/16

e. Regarding the information of the data subjects

48.

Article 22.2 of the draft law provides that data subjects are "informed of the existence of a video surveillance system by the placement of pictograms and display panels at the entrances of public transport means, as well as at stops and platforms."

49.

The CNPD wishes to emphasize that "data subject" refers to any identified or identifiable natural person.²³ In this case, this targets not only individuals using public transport, as well as pedestrians crossing public roads, but also vehicle owners whose license plates are clearly readable, even if the individuals themselves do not appear directly within the field of vision of the cameras. This obligation to inform the aforementioned data subjects falls to the data controller in accordance with Article 13 of the GDPR. The commentary on the articles specifies that data subjects are informed "by the placement of posters and an information notice in the relevant locations, as well as on the website of the Public Transport Administration or others." While it can only generally support the idea of informing in two levels to facilitate the understanding of data subjects regarding the data processing carried out during the use of a video surveillance system, it notes that the terminology used in the commentary on the articles ("on the website of the Public Transport Administration or others") reinforces the issue of defining the data controller as detailed in points 33 to 37 of this opinion.

50.

Regarding the information in two levels more specifically, such an approach consists of communicating - in the first instance - a series of information to the data subjects, for example through display panels as mentioned by the authors of the draft law, and then - in a second instance - to communicate via other means, such as a website, all the information required under Article 13 of the GDPR. Regarding the mandatory content of the first and second level of information, the CNPD allows itself to refer to its guidelines on video surveillance. ²⁴

51.

However, the Commission wonders how the data controller intends to materially comply with its obligation to inform individuals of the existence of potential "dashcams" installed outside public transport means, given that the information must reach them "at the time when the data in question is obtained" in accordance with Article 13 of the GDPR, meaning that it "must be placed in such a way that the person

²³ See definition in point 1) of Article 4 of the GDPR.

²⁴ See CNPD guidelines on video surveillance, updated on 05/04/2024, pages 6 and 7.

CNPD

Opinion of the National Commission for Data Protection

regarding draft law no. 8335 on security, safety, order, and video surveillance in public transport and amending the law of February 5, 2021, on public transport.

13/16

****CNPD****

****Opinion of the National Commission for Data Protection****

****Regarding Bill No. 8335 on Security, Safety, Order, and Video Surveillance in Public Transport and Amending the Law of February 5, 2021, on Public Transport.****

52. Similarly, in the event that the video surveillance cameras target employees of the data controller(s), the CNPD draws the attention of the data controllers to the additional obligations,

particularly regarding collective information, provided for in Article L. 261-1 of the Labor Code.

53. Ultimately, the CNPD wishes to emphasize that, in principle, any concerned individual has the right to object "at any time, for reasons relating to their particular situation, to the processing of personal data concerning them based on Article 6, paragraph 1, point e) or f), including profiling based on these provisions," in accordance with Article 21 of the GDPR. In this case, "the data controller shall no longer process the personal data unless it demonstrates that there are legitimate and compelling grounds for the processing which override the interests and rights and freedoms of the data subject, or for the establishment, exercise, or defense of legal claims."

54. Nevertheless, limitations on the scope of this right may be provided by European Union law or the law of a Member State through legislative measures based on Article 23 of the GDPR. However, the said article provides in its paragraph 1 that the rights of the data subject may be limited when such limitation respects the essence of fundamental freedoms and rights and constitutes a necessary and proportionate measure in a democratic society to guarantee the objectives listed in this paragraph. Furthermore, it should be noted that when such a restriction on the rights of individuals is provided by a legislative measure, it must contain specific provisions regarding the information listed in paragraph 2 of Article 23 of the GDPR.

55. In this case, the CNPD does not see how the concerned individuals could benefit from their right to object to the processing of their personal data by the cameras installed on and in public transport means and infrastructures. It therefore considers that such a limitation of the right to object must be included in the text of the draft law, and the conditions of the aforementioned Article 23 of the GDPR must be respected.

25 CEPD, Guidelines 3/2019 on the processing of personal data by video devices, version 2.0, adopted on January 29, 2020, point 113.

26 See also Opinion 111/2/2024 of the Chamber of Employees dated February 7, 2024, regarding the draft law under review, point 10.

27 See Article 21.1, second sentence of the GDPR.

28 These concern the purposes of the processing; categories of personal data; the scope of the limitations introduced; safeguards to prevent abuse or unlawful access or transfer; the determination of the data controller; retention periods and applicable safeguards; risks to the rights and freedoms of the data subjects; and the right of the data subjects to be informed of the limitation, unless this risks undermining the purpose of the limitation.

****CNPD****

****Opinion of the National Commission for Data Protection****

****Regarding Bill No. 8335 on Security, Safety, Order, and Video Surveillance in Public Transport and Amending the Law of February 5, 2021, on Public Transport.****

****14/16****

f. Regarding the retention period of images

56. Based on Article 23 of the draft law, recordings containing personal data are deleted after six months, unless they are used in the context of a judicial, administrative, or disciplinary procedure.

57. The CNPD first asks whether a 24/7 real-time viewing of the images is planned to ensure the preventive effect in achieving the purposes outlined in Article 21, points 4° and 6° of the draft law, or if the recordings are only viewed a posteriori in the event of an incident.

58. Regarding the retention period, Article 5.1.e) of the GDPR obliges the data controller not to retain personal data for longer than necessary for the purposes for which they are processed. The commentary on the articles specifies in this context that "in view of the procedures and the various actors involved (establishing an offense, filing a complaint, preparing a report, seizure order by the investigating judge...) or in the case of a late complaint from the victim, and in consultation with the Public Prosecutor's Office, [the retention period] is set at 6 months to allow for the prosecution of offenses by public authorities."

59. The CNPD generally considers that for data processing carried out by a video surveillance system necessary for the legitimate interests of the data controller, a retention period of 8 days seems

appropriate, except in exceptional cases justifying a duration of 30 days.

60. In the specific case and due to the arguments mentioned by the authors in the commentary on the articles, it understands, however, that a retention period of 8 days may not be sufficient to achieve the intended purposes. However, by analyzing other video surveillance systems targeting public roads and regulated by national legal texts, the CNPD notes that the retention periods are shorter. For example, Article 43ter, paragraph 7, of the amended law of July 18, 2018, on the Grand Ducal Police provides for a retention period of 28 days for images recorded by the Grand Ducal Police's body cameras, while Article 436's, paragraph 1 of the aforementioned law regulating the VISUPOL system defines a storage period of two months.

61. Regarding the French and Belgian regulations concerning cameras potentially targeting public roads, the following should be noted:

29 While respecting the other conditions required in the case of processing based on Article 6.1.f) of the GDPR.

30 See CNPD guidelines on video surveillance, updated on 04/05/2024, page 14.

CNPD

Opinion of the National Commission for Data Protection

on draft law No. 8335 concerning security, safety, order, and video surveillance in public transport and amending the law of February 5, 2021, on public transport.

15/16

- In Belgium, a royal decree of December 6, 2018, establishes the list of locations that, by their nature, present a particular risk to security and for which images from surveillance cameras may be retained for three months instead of the general retention period of one month provided by the amended law of March 21, 2007, regulating the installation and use of surveillance cameras. Under Article 3, second point of the said decree, the maximum retention period for images in "train stations and public transport vehicles of public transport companies" is indeed extended to three months. 31 It is interesting to note that in the commentary on the articles of the aforementioned decree, the authors remind that "this is about providing a possibility to retain the images for three months and not an obligation, and that this three-month period is a maximum. Therefore, the duration determined by the data controller must be justified in terms of proportionality."

In France, Articles L251-1 and following of the Internal Security Code regulate the establishment of video protection systems on public roads by the competent public authorities for various purposes, requiring, in particular, authorization from the representative of the State in the department, after consultation with the departmental video protection commission. In accordance with Article L252-3 of the said Code, this authorization must, among other things, specify the retention period within a limit of one month from the transmission of the images or access to the recordings.

62. Based on the above, the CNPD concludes that a retention period of six months seems disproportionate in relation to the purposes listed in Article 24.1 of the draft law, and it recommends that the authors of the draft law draw inspiration from the aforementioned national and foreign texts.

Thus adopted in Belvaux on May 2, 2024.

The National Commission for Data Protection

Tine A. Larsen

President

Lemmer

Commissioner

Alain Herrmann

Commissioner

31 See Article 3 of the royal decree of December 6, 2018, determining the locations where the data controller may direct its surveillance cameras towards the perimeter directly surrounding the location, retain images from surveillance cameras for three months, and provide real-time access to the images to police services.

CNPD

Opinion of the National Commission for Data Protection

on draft law No. 8335 concerning security, safety, order, and video surveillance in public transport and amending the law of February 5, 2021, on public transport.

16/16